

FORM No. 21

ORDER FOR THE REMOVAL OF NUISANCES

(See section 152)

To.....(*name, description and address*).

WHEREAS it has been made to appear to me that you have caused an obstruction (*or nuisance*) to persons using the public roadway (*or other public place*) which, etc., (*describe the road or public place*) by, etc.,(*state what it is that causes the obstruction or nuisance*), and that such obstruction (*or nuisance*) still exists;

or

WHEREAS it has been made to appear to me that you are carrying on, as owner, or manager, the trade or occupation of(*state the particular trade or occupation and the place where it is carried on*), and that the same is injurious to the public health (*or comfort*) by reason.....(*state briefly in what manner the injurious effects are caused*), and should be suppressed or removed to different place;

or

WHEREAS it has been made to appear to me that you are the owner (*or are in possession of or have the control over*) a certain tank (*or well or excavation*) adjacent to the public way(*describe the thoroughfare*), and that the safety of the public is endangered by reason of the said tank (*or well or excavation*) being without a fence (*or insecurely fenced*);

or

WHEREAS , etc., etc., (*as the case may be*);

I do hereby direct and require you within.....(*state the time allowed*) (*state what is required to be done to abate the nuisance*) or to appear at.....in the Court of.....on theday of.....next, and to show cause why this order should not be enforced;

or

I do hereby direct and require you within.....(*state the time allowed*) to cease carrying on the said trade or occupation at the said place, and not again to carry on the same, or to remove the said trade from the place where it is now carried on, or to appear, etc.;

or

I do hereby direct and require you within.....(*state the time allowed*) to put up a sufficient fence (*state the kind of fence and the part to be fenced*); or to appear, etc.;

or

I do hereby direct and require you, etc., etc. (*as the case may be*).

Dated, this..... day of..... , 20

(Seal of the Court)

(Signature)